

NexusCloud Commercial Master Services Agreement

Master Commercial Services Agreement (NexusCloud Enterprises)

Effective Date: January 1, 2026
Governing Law: State of Delaware, USA

Section 1: Scope of Services & License Grant

Provider grants Customer a non-exclusive, non-transferable, revocable worldwide right to access and utilize the Cloud AI Platform and associated REST APIs solely for Customer's internal business operations during the subscription term.

Section 2: Fees, Invoicing & Payment Terms

- All fees are denominated in US Dollars (\$USD) and billed in advance on an annual or monthly basis.
- Undisputed invoices are due net thirty (30) days from invoice receipt date.
- Delinquent balances accrue interest at the lesser of 1.5% per month or the maximum rate permissible by applicable law.

Section 3: Intellectual Property & Customer Data Ownership

- **Customer Ownership:** Customer exclusively owns all rights, title, and interest in and to Customer Data, uploaded reference documents, and prompts submitted to the Platform.
- **Platform Ownership:** Provider retains sole and exclusive ownership of all algorithms, vector index architectures, agent models, and software source code.
- **No Training on Customer Data:** Provider shall not use Customer Confidential Data or user prompts to train or fine-tune public foundation models without express written authorization.

Section 4: Mutual Indemnification Obligations

- **Provider IP Indemnity:** Provider shall defend, indemnify, and hold harmless Customer against any third-party claims alleging that Customer's authorized use of the Platform directly infringes a valid copyright, trademark, or trade secret.
- **Customer Indemnity:** Customer shall defend and indemnify Provider against claims arising from Customer Data uploaded in violation of third-party intellectual property or privacy rights.
- **Indemnity Procedure:** The indemnified party must give prompt written notice of any claim and grant sole control of defense and settlement to the indemnifying party.

Section 5: Limitation of Liability & Consequential Damages Waiver

- **Aggregate Monetary Cap:** In no event shall either party's total aggregate liability arising out of or related to this Agreement exceed the total amounts actually paid by Customer in the twelve (12) months preceding the incident.
 - **Exclusion of Consequential Damages:** Neither party shall be liable for lost profits, loss of business goodwill, data corruption, or indirect, incidental, or consequential damages.
 - **Exceptions to Liability Cap:** The limitations set forth in this Section shall not apply to:
 - Gross negligence or willful misconduct.
 - Breaches of Section 7 (Confidentiality).
 - Direct statutory penalties resulting from gross data protection violations under Section 8.
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Section 6: Termination & Order Cancellation

- **Termination for Cause:** Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure such breach within thirty (30) calendar days.
 - **Termination for Convenience:** Customer may terminate any active subscription upon sixty (60) days advance written notice, subject to payment of all accrued fees.
 - **Post-Termination Data Deletion:** Upon contract termination, Provider shall permanently purge all indexed vector embeddings and customer document chunks within forty-five (45) business days.
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Section 7: Regulatory Compliance & GDPR Data Processing

- **GDPR Standard Contractual Clauses:** Both parties adhere to the EU Standard Contractual Clauses (Module 2: Controller-to-Processor) for cross-border personal data transfers.
- **Data Security Standards:** Provider maintains SOC 2 Type II compliance, TLS 1.3 encryption in transit, and AES-256 encryption at rest for all database volumes.